



Med Spa Documentation Gap Assessment

Every item below maps to documentation, training, or templates included in the Compliance Ghost Kit.

How to use: check YES, NO, or N/A for each item. Every “NO” is a documentation gap the \$997 Compliance Kit fills with ready-to-use manuals, training guides, quizzes, certificates, forms, and templates. The green line shows exactly what the Kit provides for that item.

Penalty basis: TMB, TSBDE, TDLR, and DSHS may each assess up to \$5,000 per violation under Occ. Code §165.001, §264.002, §51.302 and Health & Safety Code §146.019, and each day a violation continues can be treated separately. OSHA serious violations reach \$16,550 and willful or repeated ones \$165,514. HIPAA civil penalties run \$145–\$73,011 per violation with a \$2,190,294 annual cap for repeat violations of the same provision. OSHA and HIPAA amounts are the 2026 figures and adjust for inflation each January. Amounts shown are maximums, not predictions.

WRITTEN PROTOCOLS & DELEGATION

	YES	NO	N/A
Do you have written delegation protocols (standing delegation orders) signed and dated by your delegating physician, and reviewed and re-signed within the last 12 months? Rule & penalty: up to \$5,000 per violation, each day separate (TMB) — required under 22 TAC Chapter 169 KIT INCLUDES: Physician Delegation Protocol templates + Annual Review Log	☐	☐	☐
Do your delegation documents cite the current rule, 22 TAC Chapter 169, rather than the repealed 22 TAC §193.17? Rule & penalty: Protocols citing a repealed rule are treated as out of date on inspection (Chapter 169 replaced §193.17 in January 2025) KIT INCLUDES: Updated Chapter 169 protocol set	☐	☐	☐
Before each new treatment, is every patient evaluated by a physician, PA, or APRN who issues an individualized treatment order documented in the chart? Rule & penalty: up to \$5,000 per violation, each day separate (TMB) KIT INCLUDES: Patient Evaluation & Treatment Order forms	☐	☐	☐
For IV therapy and hydration: since September 1, 2025, are IVs administered only by an RN or above, with ordering delegated only to a PA or APRN? Rule & penalty: HB 3749 (“Jennifer’s Law”), effective September 1, 2025 — medical assistants, LVNs, and unlicensed staff may no longer administer elective IV therapy KIT INCLUDES: IV Therapy Protocol addendum + staff scope verification	☐	☐	☐
Is at least one BLS-trained person present whenever patients are treated, with the physician, PA, or APRN reachable per your protocol? Rule & penalty: up to \$5,000 per violation, each day separate (TMB) KIT INCLUDES: Emergency Response Protocol + BLS Training Log	☐	☐	☐
Do you have a written OSHA Exposure Control Plan covering needle and cannula procedures, reviewed within the last 12 months? Rule & penalty: up to \$16,550 per serious violation (OSHA) — the plan must be reviewed annually (29 CFR 1910.1030(c)) KIT INCLUDES: Exposure Control Plan template + annual update checklist	☐	☐	☐



	YES	NO	N/A
Do you have a written Hazard Communication program with a chemical inventory for peels and disinfectants? Rule & penalty: up to \$16,550 per serious violation (OSHA) (29 CFR 1910.1200) KIT INCLUDES: HazCom program template + chemical inventory spreadsheet	☐	☐	☐
Do you have a written Emergency Action Plan with posted evacuation procedures? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: Emergency Action Plan template + evacuation route posting	☐	☐	☐
Do you have a written PPE hazard assessment documenting the protective equipment each role requires? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: PPE Hazard Assessment form + equipment selection guide	☐	☐	☐
Do you have a written breach notification plan with defined response procedures? Rule & penalty: \$145–\$73,011 per violation (HIPAA) — 60-day notification deadline KIT INCLUDES: Breach response plan + notification letter templates	☐	☐	☐
Do you have a written social media and online-review response policy that prevents PHI disclosure? Rule & penalty: A Dallas dental practice paid \$10,000 to OCR after replying to a Yelp review with patient details (Elite Dental Associates, 2019) KIT INCLUDES: Social media policy template + staff training on PHI boundaries	☐	☐	☐

RISK ANALYSIS & RECORDS

	YES	NO	N/A
Have you completed a HIPAA Security Risk Analysis within the last 12 months? Rule & penalty: \$145–\$73,011 per violation (HIPAA) — OCR reports risk analysis as its most frequently cited deficiency KIT INCLUDES: Step-by-step Security Risk Analysis workbook + documentation templates	☐	☐	☐
Do you have a documented risk management plan showing the corrective actions taken from that analysis? Rule & penalty: OCR's Risk Analysis Initiative had completed 13 enforcement actions as of April 2026, with settlements starting at \$10,000 KIT INCLUDES: Risk management plan template with corrective action tracking	☐	☐	☐
Are complete treatment records — evaluation, consent, product lot numbers, photos — retained at least 7 years (for minors, until age 21 or 7 years, whichever is longer)? Rule & penalty: 22 TAC Chapter 165 · up to \$5,000 per violation, each day separate (TMB) KIT INCLUDES: Records Retention Policy + chart completeness checklist	☐	☐	☐



	YES	NO	N/A
Can you reconcile product purchased against product administered, with lot numbers and labeling retained for every vial? Rule & penalty: The FDA issued a warning letter to a Texas med spa on April 1, 2026 over exactly this gap — purchase-to-administration discrepancies and an unlabeled vial (fda.gov, letter #723267) KIT INCLUDES: Product Log + lot tracking sheets	☐	☐	☐

TRAINING DOCUMENTATION

	YES	NO	N/A
Have all employees with blood or OPIM exposure completed bloodborne pathogen training within the past year? Rule & penalty: up to \$16,550 per serious violation (OSHA) — training records kept 3 years KIT INCLUDES: BBP training guide + quiz + completion certificates + training log	☐	☐	☐
Has every employee completed documented Texas privacy training within 90 days of hire, with signed and dated records? Rule & penalty: Health & Safety Code Chapter 181 (HB 300) — \$145–\$73,011 per violation (HIPAA) KIT INCLUDES: HB 300 privacy training + signed acknowledgment log	☐	☐	☐
Has the supervising physician documented individual training verification for each provider and each delegated procedure? Rule & penalty: up to \$5,000 per violation, each day separate (TMB) KIT INCLUDES: Provider training verification form for each delegated procedure	☐	☐	☐
Do you document that hepatitis B vaccination was offered to at-risk staff within 10 days of hire, with signed declinations on file? Rule & penalty: up to \$16,550 per serious violation (OSHA) (29 CFR 1910.1030(f)) KIT INCLUDES: Hep B offer and declination forms + vaccination tracking log	☐	☐	☐

POSTED NOTICES, CONSENT & STRUCTURE

	YES	NO	N/A
Is the TMB complaint notice posted in all public-facing areas? Rule & penalty: up to \$5,000 per violation, each day separate (TMB) — posting requirement added January 2025 KIT INCLUDES: Print-ready TMB complaint notice template	☐	☐	☐
Are the delegating physician's name and Texas license number posted in every treatment room, with staff wearing name and credential badges? Rule & penalty: up to \$5,000 per violation, each day separate (TMB) — posting and badge requirements added January 2025 KIT INCLUDES: Treatment room posting template + badge specification	☐	☐	☐



	YES	NO	N/A
Is a Notice of Privacy Practices provided to every patient and posted visibly? Rule & penalty: \$145–\$73,011 per violation (HIPAA) KIT INCLUDES: Notice of Privacy Practices template + acknowledgment form	☐	☐	☐
Are signed business associate agreements in place with every vendor that touches patient data (EMR, booking, photo storage)? Rule & penalty: \$145–\$73,011 per violation (HIPAA) KIT INCLUDES: BAA template customizable for all vendor types	☐	☐	☐
Do you maintain a sharps injury log? Rule & penalty: up to \$16,550 per serious violation (OSHA) KIT INCLUDES: Sharps Injury Log template	☐	☐	☐
Do you have complete informed consent forms for every medical procedure you offer? Rule & penalty: up to \$5,000 per violation, each day separate (TMB), plus malpractice exposure KIT INCLUDES: Informed consent templates for common med spa procedures	☐	☐	☐
If the business is not physician-owned, is your management services (MSO) arrangement documented consistently with the Texas prohibition on the corporate practice of medicine? Rule & penalty: Texas bars unlicensed entities from controlling medical decision-making; arrangements that cross the line have been unwound and litigated KIT INCLUDES: MSO agreement framework + compliance checklist	☐	☐	☐
If you offer laser hair removal: is the facility registered with TDLR, with a written consulting-physician contract and properly certified technicians? Rule & penalty: up to \$5,000 per violation, each day separate (TDLR) (Health & Safety Code Chapter 401 Subchapter M; 16 TAC Chapter 118) KIT INCLUDES: LHR facility checklist + consulting physician contract	☐	☐	☐

YOUR SCORE: _____ YES / _____ NO / _____ N/A **“NO” COUNT:** 0–2 low · 3–5 medium · 6+ high

Every “NO” above is a documentation gap the Compliance Kit fills.

The Compliance Ghost Compliance Kit (\$997) includes ready-to-use compliance manuals, training guides with quizzes, completion certificates, the required forms and templates, and a step-by-step implementation guide — covering every item on this checklist, written for your business and delivered within 48 hours.

One-time purchase. Payment plans available: 3 × \$349/mo. Compliance Shield is optional and keeps these documents current as Texas rules change — \$89/month or \$890/year, cancel anytime.

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